Accelerated Misconduct Hearing Finding and Outcome

Officer Name:	PC Jerome Beasley
Officer Name:	PC Luke Robinson
Date of Hearing:	Friday 10th January 2025
Alleged Standards Breached:	• Discreditable Conduct • Authority, Respect and Courtesy

Finding

I have had the benefit of the papers in advance of today and read them carefully before the hearing started. I am satisfied that all the required notices under the *Police (Conduct) Regulations 2020* have been served. These are matters which have not, in any case, been disputed before me.

This hearing was held in private.

I have listened to the case presented on behalf of the Appropriate Authority by Kevin Saunders KC I have also listened carefully to the representations made on behalf of PC Beasley and PC Robinson by their Legal Representative, Ms Lloyd Jacob.

The allegations against PC Beasley and PC Robinson are that on 21st April 2024 you attended the Hippodrome Casino, Westminster, with colleagues, off duty.

Throughout the evening you inappropriately touched [PC A] on her breasts on multiple occasions. You also attempted to touch her on other parts of her body and this touching was inappropriate in nature.

Standards of Professional Behaviour:

In the circumstances, the Appropriate Authority contends that your actions breached the Standards of Professional Behaviour as set out in the Regulation 5 and Schedule 2 of the Police (Conduct) Regulations 2020 namely:

- Discreditable Conduct
- Authority, Respect and Courtesy

In that you conduct may bring the police service into disrepute and damage the relationship of trust and confidence between the police and the public.

As a result of that stated herein, if proven, your conduct individually or cumulatively amounts to gross misconduct.

Standards of Professional Behaviour:

In the circumstances, the Appropriate Authority contends that his actions breached the Standards of Professional Behaviour as set out in the Regulation 5 and Schedule 2 of the Police (Conduct) Regulations 2020, as amended by the Police (Conduct)(Amendment) Regulations 2024, namely:

- **Discreditable Conduct** "Police officers behave in a manner which does not discredit the police service or undermine public confidence in it, whether on or off duty. Police officers report any action taken against them for a criminal offence, any conditions imposed on them by a court or the receipt of any penalty notice."

- **Authority, Respect and Courtesy** "Police officers act with self-control and tolerance, treating members of the public and colleagues with respect and courtesy. Police officers do not abuse their powers or authority and respect the rights of all individuals."

Facts:

Having heard evidence from AA and Counsel for officers I intend to work through AA submission on findings of fact.

At 21.54 on CCTV I do find that PC Robinson is shown to move his hand towards the breast of [PC A], and you can see her recoil.

At 21.57 I find that PC Robinson places his hand on the breast of [PC A] whilst she takes a self-portrait.

At 22.00 PC Robinson squeezes her breast with his left hand. It is clear that upon him squeezing her breast she immediately looks down, move s away from PC Robinson and points towards him.

At 22.04 I agree that [PC A] gesticulates a grabbing hand supporting the fact that PC Robinson squeezed her breast.

At 22.08 PC Beasley places his left hand on the breast of [PC A] which she immediately removes it.

At 22.19 I do not accept the AA position that [PC A] places their hands together in an attempt to prevent them touching her, however this is also the point at which the hand game appears to begin.

At 22.28 I agree that PC Beasley lunged his right hand towards the breast of [PC A] and she blocks this with her arm. As she does this, PC Robinson moves towards her breast with his left hand and I agree that she doubles over in what appears to be an attempt to prevent this contact.

At 22.58 it is clear that PC Robinson grabs [PC A]s breast with his right hand at which point she immediately moves away and seeks to protect her breasts with her arm.

At 23.05 PC Robinson does move his hand towards [PC A]s groin and I agree that she appears to point at him in a warning fashion.

At 23.34 PC Beasley states in his Reg 54 response that he intentionally brushes [PC A]s bottom, but I did not observe this clearly.

At 23.54 [PC A] returns to the table having appeared to collect a cloth from the bar to wipe the table they are at. At which point PC Robinson immediately fondles her breast again I believe it is clear at this point that you can see [PC A] says 'stop it'.

At 23.58 I agree that PC Beasley attempts to touch the breast of [PC A] and at 24.05 I do not accept that she gesticulates in a way suggesting 'stay away' which the AA acknowledged and this does appear to be part of the hand game.

At 24.07 I agree that PC Beasley again grabs the right breast of [PC A] and that she twists away to displace that hand. It is clear that [PC A] then leaves the table and on returning appears to play the hand game with PC Groom whilst clearly protecting her breasts from PC Beasley.

At 25.18 PC Beasley appears to attempt to touch [PC A]s groin.

Finally at 37.47 the AA contends that PC Robinson slaps [PC A] on her bottom, I find no clear evidence of this.

Breach of Standards:

I am satisfied on a balance probabilities that the actions by PC Beasley and PC Robinson on the day as described above did breach the Standard of Professional Behaviour.

In terms of Discreditable Conduct:

- Their behaviour as proven by the facts does discredit the police service and undermine public confidence in it
- A member of the public would not expect Police officers to inappropriately touch women, whether a colleague or not, in such circumstances.
- Behaviour of this nature is clearly not acceptable even if considered 'friendly joshing', as that is an unacceptable culture to pervade policing.
- In taking the objective test as flagged both by the AA and Counsel for the officers, I believe any reasonable member of the public would find this behaviour wholly unacceptable.

In terms of Authority, Respect and Courtesy:

Where officers should act with self-control, treating members of the public and colleagues with respect and courtesy, I find that both Beasley and Robinson were highly disrespectful towards [PC A] and lacked courtesy in their behaviour towards her.

Furthermore the fact that other officers failed to challenge this inappropriate behaviour, whilst extremely disappointing, does not mean that it was either acceptable or merely part of friendly behaviour.

I bear in mind that the burden of proving this rests upon the AA and that it must satisfy me on the balance of probabilities. I am satisfied the AA has discharged that burden and that the conduct did breach the standards of Discreditable Conduct.

Gross Misconduct

I have reminded myself that gross misconduct is a breach of the *Standards of Professional Behaviour* so serious that it could justify dismissal. Applying that definition, I am satisfied that PC Beasley and PC Robinson did both breach of the standards of discreditable conduct and Authority, Respect and Courtesy does amount to gross misconduct

Outcome Decision

In making my decision on outcome I adopt the three stage process, as outlined in the College of Policing's Guidance on Outcomes in Police Misconduct Proceedings to determine the appropriate sanction.

The first stage is to assess the seriousness of the conduct. This is assessed by reference to:

i. The officer's culpability,
ii. The harm caused by the misconduct
iii. The existence of aggravating factors
iv. The existence of mitigating factors.

The second stage is to keep in mind the purpose of the police misconduct regime. I remind myself that this has three elements:

i. To maintain public confidence in and the reputation of the police service,
ii. To uphold high standards and deter misconduct, and
iii. To protect the public

I further remind myself that the police misconduct regime is not designed to punish police officers – it is about the reputation and standing of the profession as a whole.

The third stage is to choose the outcome that most appropriately fulfils that purpose given the seriousness of the conduct in question.

I start by assessing the seriousness of the conduct, due to the nature of the behaviour of both officers, the similarity in conduct and the amount of times they both inappropriately touched [PC A], I will deal with both officers together.

Stage 1: the seriousness of the conduct

Culpability

PC Beasley and PC Robinson repeatedly and inappropriately touched [PC A] on her breasts. They chose to do this and could easily not have done, and whilst consent is not in question here, it is clear from the CCTV that the touching was not welcomed.

The actions of both officers were deliberate, persistent and inexcusable.

PC Beasley and PC Robinson were individually responsible for their actions and I therefore assess the culpability as high.

Harm:

PC Beasley and PC Robinson would be very aware of the extensive work ongoing in relation to tackling violence against women and girls, and the enormous challenge this poses policing. Their behaviour seriously undermines and causes harm to the public trust and confidence in the MPS.

It is suggested that no harm was caused to [PC A] but I don't accept this. It is clear that at times their actions made her uncomfortable and simply relying on the fact that their evening continued does not prove how she felt. It is entirely conceivable that her continuing in the way she did, was only her way of dealing with the inappropriate behaviour.

Tolerating behaviour such as this within the Metropolitan Police, whatever the circumstance, suggests that it is acceptable. The harm caused by culture where this is the case is clear, and has been directly referenced in both the Casey and Angiolini Reviews.

The public would not expect a serving police officer to behave in this way.

In this case, the harm is therefore high.

Aggravating factors:

When considering aggravating factors, I am mindful not to double count matters that have already formed part of my assessment of harm and culpability.

However, I do find it notable that both officers appeared on the CCTV to find their behaviour amusing.

Mitigating factors:

The fact that there was no public outcry has been advanced by Ms Lloyd Jacob as a mitigating factor, however, the public would not expect serving police officers to behave in this way.

I find there are no factors mitigating the seriousness of the conduct.

Conclusion on seriousness:

Taking all these matters into consideration I assess the seriousness of the conduct as high.

Personal Mitigation:

I am mindful of the limits to the weight I should attach to personal mitigation as identified in the College of Policing's Guidance on Outcomes in Police Misconduct Proceedings, and that the interests of the police service, and the protection of the public, are more important than those of the individual officer.

I have reviewed a number of character references provided for the officers and have taken these into account whilst making my decision on outcome.

Stage 2: the purpose of the misconduct regime

I have reminded myself of the threefold purpose of the police misconduct regime carefully in considering the appropriate outcome in this case.

I further remind myself that the police misconduct regime is not designed to punish police officers – it is about the reputation and standing of the profession as a whole.

I do acknowledge the risk that the outcome imposed can have a punitive effect; accordingly the outcome should be no more than is necessary to satisfy the purpose of the proceedings. Therefore, I shall consider less severe outcomes before more severe outcomes and shall impose the least severe outcome that deals adequately with the issues identified, whilst protecting the public interest.

Stage 3: the appropriate outcome

I have considered the officers record of service.

I have considered whether a final written warning, or indeed a reduction in rank, would be an appropriate sanction in this case, but owing to the fact that both officers are constables, they cannot be reduced in rank.

I considered whether a final written warning would be consistent with the public interest and would be sufficient to deter behaviour such as this in the future. In my view it would not.

The Metropolitan Police Service is working extremely hard to restore trust and confidence in our communities, this is particularly relevant when it comes to violence against women and girls. This behaviour is entirely inappropriate and the public would not expect officers to consider this type of behaviour appropriate in any circumstance. If it appeared that this behaviour was not taken extremely seriously then we would be unable to address those cultures across the Met where this behaviour is still considered acceptable, or restore the confidence of the public. It is also relevant that our female colleagues should feel comfortable, whether on or off duty, and should not in any circumstance have to tolerate this type of behaviour or justify why it is not acceptable.

I have considered the matter fully, including the nature and severity of the breaches of the Standards of Professional Behaviour.

OUTCOME: Taking into account the seriousness of this behaviour means that I do not consider that any sanction less than dismissal without notice is justified. As such, my decision is that PC Beasley and PC Robinson should be **dismissed without notice** and placed on the College of Policing's barred list.

Laurence Taylor

Assistant Commissioner Professionalism 25th January 2025